

April 13, 2026
Dept. 9
Probate Tentative Rulings

12.	26PR0042	IN THE MATTER OF MARIAN RENDELL FAMILY TRUST
Compel Accounting		

The settlor of the subject trust ("Trust") died on August 24, 2021, survived by six adult children, including the trustee, Jason O'Neil, and Petitioner, Thomas O'Neil. Jason O'Neil was appointed successor trustee following the settlor's death pursuant to the terms of the Trust, which is attached to the Petition as Exhibit 1.

Petitioner requests action by the Court concerning internal affairs of the Trust pursuant to Probate Code § 17200(a). The Petition asserts that no inventory of the estate, no accounting of the income, expenses and assets of the estate has ever been provided to the beneficiaries since the death of the settlor, in violation of Probate Code § 16060, *et seq.*, in spite of Petitioner's requests.

According to the Petition, the settlor's residence was sold by the trustee and some but not all the proceeds were distributed to the beneficiaries. No inventory of the settlor's personal possessions or accounting of their distribution has been provided.

Petitioner requests the Court to issue an Order compelling the trustee to provide an accounting of the receipts, disbursements, gains and losses on sales of assets, assets and liabilities and other information required by Probate Code § 16063 as of the settlor's death and continuing to the present.

Petitioner further requests the Court to find that the Petition does not implicate the No Contest clause of the Trust, which provides:

If any beneficiary of this instrument, singularly or in combination with any other person or persons, directly or indirectly, and without probable cause challenges the validity of this instrument on any of the grounds listed below, then the right of that person to take any interest given to him or her by this instrument shall be void, any gift or other interest in the trust property to which the beneficiary would otherwise have been entitled shall pass as if he or she had predeceased the settlor:

- a) Forgery;
- b) Lack of due execution;
- c) Lack of capacity;
- d) Menace, duress, fraud or undue influence;
- e) Revocation pursuant to the terms of this instrument or applicable law;
- f) Disqualification of a beneficiary who is a "disqualified person" as described in California Probate Code section 21350 or applicable successor statute.

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TENTATIVE RULING #12: ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).